

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR DEPARTMENT NAME
HON. YOLANDA V. TORRES

Date: July 27, 2026

These are the Court's tentative rulings. They may become orders if the parties do not appear at the hearing. The Court might also make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 442, fn. 1)

If all counsel submit on the tentative ruling and do not desire oral argument please advise the courtroom clerk or courtroom attendant by calling (657) 622-5215. Please do not call the department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the court, the tentative ruling shall become the court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under Cal.R. Ct. 3.132.

Court reporters: Official court reporters are not provided in this department for any proceedings. If the parties desire the services of a court reporter, the parties should follow the procedures set forth in the Privately Retained Court Reporter Policy on the court's website at www.occourts.org.

3	Bear Capital partners, Inc. v. Smith 2025-01508678 Demurrer to Cross Complaint CMC	Plaintiffs/Cross-Defendants' Demurrer to the Cross-Complaint is MOOT. Plaintiffs/Cross-Defendants Bear Capital Partners, Inc., in its Capacity as the Manager of 2330 E. 15th St., LLC; or alternatively, in its Derivative Capacity on behalf of 2330 E. 15th St., LLC; and Ronald L. Meer move for an order sustaining their demurrer to the cross-complaint of Defendants/Cross Complainants Michael Smith, John Kling and 2003 Newport, LLC. In lieu of filing an opposition, Defendants/Cross Complainants timely filed a first amended cross-complaint on 6/4/26. (See Code Civ. Proc., §§ 472, 1005.) The demurrer is moot and therefore taken off-calendar.
4	Morgan v. Apex Heating and Air, LLC. 2025-01511413	Plaintiffs Steve Morgan and Sonia Tavakoli's motion for leave to file a First Amended Complaint is CONTINUED. The Court shall select a new date on 7/27/26. Plaintiffs have not submitted proof of service showing that the moving papers were served on Defendants. (See Code Civ. Proc. § 1005, subd. (b); Cal. Rules of Court, Rule

	Motion for Leave to File 1st Amended Complaint CMC	3.1300, subd. (c).) No response or opposition was filed; therefore, the court cannot deem this defect waived. Plaintiffs are ORDERED to file a Proof of Service showing that the moving papers were served on Defendants, at least 5 court days before the CONTINUED hearing.
5	SBS Trust Deed Network v. Estate of Elaine Thomas 2025-01338514 Motion for Leave to File Cross Complaint	Bourbon Holdings LLC's ("Bourbon Holdings") motion for leave to file a cross-complaint against Randall Sharp is GRANTED. The proposed cross-complaint against Sharp is compulsory since it alleges related causes of action against Sharp. (See Code Civ. Proc. §426.30. subd. (a).) The proposed cross-complaint asserts causes of action for breach of contract and declaratory relief arising from the same written assignment agreement and foreclosure sale surplus proceeds that form the basis of Sharp's Cross-Complaint against Bourbon Holdings and thus satisfies the criteria in section 426.30, subdivision (a). Sharp contends the Motion was not filed in good faith, however, Sharp's evidence does not support a finding that Bourbon Holdings is not acting in good faith. Further, granting leave to file a cross-complaint will not be prejudicial to Sharp since no trial date has been set, discovery remains open, and the case is at an early stage. Moving party to give notice.
6	Mulder v. Abab 2024-01436435 Motion to for Leave to file and serve 1st Amended Answer	The motion of defendants OC Lux Transportation LLC and Mike Abab for an order granting them leave to file a first amended answer to the complaint of plaintiffs David and Jianfen Mulder is GRANTED. Defendants are to file and serve the original first amended answer within five Court days. Discussion. Defendants move for an order granting them leave to file a first amended answer that contains a new affirmative defense for sudden emergency. Plaintiffs oppose the motion, contending that defendants are unfairly attempting to substantially change the scope of the case after nearly two years without explanation. Amendment to a pleading may be permitted by a court on such terms as may be just after notice to the adverse party. Code Civ. Proc. § 473(a)(1). If the purpose or grounds for the amendment are not evident from the nature or content of the amendment, a declaration containing the necessary information may be attached to show the facts that would support filing the amendment. See <i>Plummer v. Superior Court</i> (1963) 212 Cal.App.2d 841.

		A motion to amend must include a copy of the proposed amendment or amended pleading, state what allegations in the previous pleading are proposed to be deleted, and state what allegations are proposed to be added to the previous pleading. CRC 3.1324(a). In addition, a separate declaration must accompany the motion and specify: (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons the request for amendment was not made earlier. CRC 3.1324(b). Defendants have substantially complied with the requirements of Rule 3.1324. As previously noted, they seek to amend their initial complaint by adding a new affirmative defense for sudden defense. Defendants recently substituted in new counsel who, in reviewing the declaration of defendant Abab, determined that the circumstances of the underlying traffic collision warranted the new defense. To the extent that plaintiffs contend that they will suffer prejudice by the new affirmative defense, defense counsel indicated in the reply that counsel would be willing to stipulate to a trial continuance if other counsel want one. Defense counsel also represented that defendant Abab would be produced for a second deposition concerning the circumstances of the underlying traffic collision if other counsel want one.
7	Ortiz v. City of Fullerton 2025-01457514 Motion for Leave to File Cross Complaint	The unopposed motion of defendants, cross-defendants, and cross-complainants Lansburg Family Trust, and Scott Lansburg for leave to file a first amended cross-complaint is GRANTED. Counsel for moving parties is to file the original first amended cross-cross-complaint and serve copies on all parties within five court days. Amendment to a pleading may be permitted by a court on such terms as may be just after notice to the adverse party. Code Civ. Proc. § 473(a)(1). If the purpose or grounds for the amendment are not evident from the nature or content of the amendment, a declaration containing the necessary information may be attached to show the facts that would support filing the amendment. See <i>Plummer v. Superior Court</i> (1963) 212 Cal.App.2d 841. A motion to amend must include a copy of the proposed amendment or amended pleading, state what allegations in the previous pleading are proposed to be deleted, and state what allegations are proposed to be added to the previous pleading. CRC 3.1324(a).

		In addition, a separate declaration must accompany the motion and specify: (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons the request for amendment was not made earlier. CRC 3.1324(b). Moving parties have substantially complied with the requirements of Rule 3.1324 and none of the other parties to the action have opposed the motion.
8	Acevedo v. Veterans Educating Veterans, LLC 2024-01404288 Motion to be relieved as counsel for Veterans Educating Veterans, LLC and Robert Pinero	The motion of Lloyd Winter, P.C., to withdraw as attorneys of record for defendants Veterans Educating Veterans, LLC, and Robert Pinero is DENIED without prejudice for failure to use the mandatory Judicial Council forms and lodge a proposed order on the mandatory Judicial Council form. Rule 3.1362 of the California Rules of Court provides that notice of motion must be given to the client on Judicial Council form MC-051 and that it must be accompanied by the declaration of the moving attorney on Judicial Council form MC-052. It also provides that no memorandum of points and authorities is required to be filed or served with the motion. Rule 3.1362 further provides that a proposed order on Judicial Council form MC-053 must be lodged with the Court with the moving papers. Additionally, Rule 3.1362 contains directions regarding service of the motion.
9	LM v. Lewis 2025-01497824 Motion for Preference	The Motion for Trial Preference by plaintiff L.M., by and through his guardian ad litem, Michaela Miller, is GRANTED. Plaintiff moves for an order establishing entitlement to a preferential trial date within 120 days and setting such trial date. (Code Civ. Proc. § 36, subd. (a).) Because the Court has already set trial for 3/15/27, plaintiff is essentially asking the Court to vacate that date and set an earlier one. Defendant has not opposed the motion. Code of Civil Procedure section 36 provides in pertinent part: “(b) A civil action to recover damages for wrongful death or personal injury shall be entitled to preference upon the motion of any party to the action who is under 14 years of age unless the court finds that the party does not have a substantial interest in the case as a whole. A civil action subject to

		subdivision (a) shall be given preference over a case subject to this subdivision. "(c) Unless the court otherwise orders: [¶] (1) A party may file and serve a motion for preference supported by a declaration of the moving party that all essential parties have been served with process or have appeared . . . "(f) Upon the granting of such a motion for preference, the court shall set the matter for trial not more than 120 days from that date and there shall be no continuance beyond 120 days from the granting of the motion for preference except for physical disability of a party or a party's attorney, or upon a showing of good cause stated in the record. Any continuance shall be for no more than 15 days and no more than one continuance for physical disability may be granted to any party. . . ." Plaintiff has satisfied the requirements of section 36. Plaintiff submits a copy of the signed Order Appointing Guardian Ad Litem, Michaela Miller, which reflects Plaintiff's date of birth and establishes he is four years old. (Ryan Decl., ¶ 2; Exhibit A.) Plaintiff has a substantial interest in this action. Plaintiff is the primary plaintiff who alleges he was injured by Defendant's dog, has asserted causes of action under the Dog Bite Statute (Civ. Code § 3342), among others, and seeks resulting general and special damages for serious physical injuries, emotional trauma, and other economic and non-economic damages. Lastly, all essential parties have been served with process or have appeared in this action. (Ryan Decl., ¶ 3.) Based on the foregoing, the motion for preference is GRANTED. On 7/27/26 the Court shall set a new trial date that will be no more than 120 days from 7/27/26 pursuant to section 36(f).
10	Natural Beaded Rows, LLC v. Owens 2025-01535796 Motion to Strike – Anti SLAPP CMC	Defendant Aniaane Owens' Special Motion to Strike under the Anti-SLAPP Statute is DENIED. <u>Summary of Plaintiff's First Amended Complaint:</u> Plaintiffs Natural Beaded Rows, LLC ("NBR") and ISLA Hair, LLC ("ISLA") operate well-established professional hair-education, certification, and product businesses serving stylists nationwide. (First Amended Complaint ("FAC"), ¶¶ 1-2, 13, pg. 2, 13.) Plaintiff Danielle K. White (White) is the founder, principal, and public-facing educator and brand representative of NBR and ISLA and is widely identified with

	the brands in the professional hair industry. (FAC, ¶ 3, p. 2.) From approximately 2017 through August 2022, Defendant was employed by Plaintiffs as Lead Trainer and Director of Education. (FAC, ¶ 5, pg. 2.) In that senior role, Defendant developed relationships with stylists, educators, and certification participants and was entrusted with Plaintiffs’ confidential stylist lists, certification-participant data, client contact information, and internal business-relationship records— information not publicly available and developed through substantial time and expense. (FAC, ¶¶ 5, 16, pgs. 2, 4.) On or around August 2022, Defendant was terminated from Plaintiffs’ employment. (FAC, ¶ 6.) Leading up to her termination, Defendant accessed, copied, retained, and removed their proprietary stylist and client information and thereafter used or disclosed it in competitive and interfering activities and for the benefit of her own competing business, “Mourning House,” and to disparage Plaintiffs. (FAC, ¶¶ 17, 88, pgs. 4, 16.) Following the termination of her employment in August 2022, Defendant embarked on a deliberate campaign to disparage Plaintiffs and White, motivated by animus and retaliation. (FAC, ¶ 19, pg. 4.) Beginning in or about 2022 through at least 2024, Defendant published false statements about Plaintiffs on multiple online platforms, including Reddit, Facebook groups, TikTok and Instagram posts, that impugned Plaintiffs’ business practices, ethics, legitimacy, and professional integrity. (FAC, ¶¶ 16, 20-21, pgs. 4-6.) The statements were directed to stylists, educators, certification participants, competitors in the stylist community, and prospective business partners of Plaintiffs. (FAC, ¶ 23, pg. 5.) She urged stylists and educators to disengage from NBR’s certification programs breach contracts, and to stop purchasing ISLA products. (FAC, ¶¶ 67, 75, pgs. 13, 15.) Although Defendant may not have directly used defamatory language in every instance, the manner in which she presented her statements, particularly through emotionally charged posts timed with the filing of litigation, conveyed false impressions about White’s conduct, business integrity, and personal character. (FAC, ¶ 44, pg. 9.) NBR’s certification enrollments and ISLA’s hair sales and wholesale engagement declined approximately 75% following the publications and loss substantial profits. (FAC, ¶ 69, pg. 14.) <u>Request for Judicial Notice</u> Plaintiffs’ seek judicial notice of an employment complaint filed on 9/23/24 in <i>Rivera, et al. v. Warrior Management</i>
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		<i>Company, LLC, et al.</i>, Orange County Superior Court Case No. 30-2024-01428343-CU-OE-WJC by Defendant, along with four other former employees, against Warrior Management Company, LLC; Garrett White and Danielle White. (Plaintiffs’ Request for Judicial Notice (“RJN”), Ex. 1.) The complaint alleges several violations of the California Fair Employment and Housing Act (“FEHA”) including sexual harassment, sex discrimination, and pregnancy discrimination (“FEHA Action”). Defendant’s request is granted. (See Evid. Code § 452, subd. (d).) <u>Legal Standard</u> “A cause of action against a person arising from any act of that person in furtherance of the person’s right of petition or free speech under the United States Constitution or the California Constitution in connection with a public issue shall be subject to a special motion to strike, unless the court determines that the plaintiff has established that there is a probability that the plaintiff will prevail on the claim.” (CCP § 425.16(b)(1).) An “act in furtherance of a person’s right of petition or free speech under the United States or California Constitution in connection with a public issue” includes: . . . any written or oral statement or writing made in a place open to the public or a public forum in connection with an issue of public interest, or . . . any other conduct in furtherance of the exercise of the constitutional right of petition or the constitutional right of free speech in connection with a public issue or an issue of public interest. (Code Civ. Proc. § 425.16(e).) “Section 425.16 posits [] a two-step process for determining whether an action is a SLAPP.” (<i>Navellier v. Sletten</i> (2002) 29 Cal. 4th 82, 88.) “First, the court decides whether the defendant has made a threshold showing that the challenged cause of action is one arising from protected activity.” (<i>Id.</i>) “A defendant meets this burden by demonstrating that the act underlying the plaintiff’s cause fits one of the categories spelled out in section 425.16, subdivision (e).” (<i>Id.</i>) “If the court finds that such a showing has been made, it must then determine whether the plaintiff has demonstrated a probability of prevailing on the claim.” (<i>Id.</i>) “[I]n order to establish the requisite probability of prevailing (§ 425.16, subd. (b)(1)), the plaintiff need only have ‘stated and substantiated a legally sufficient claim.’” (<i>Navallier, supra</i>, 29 Cal. 4th at p. 88.) “Put another way, the plaintiff ‘must demonstrate that the complaint is both legally sufficient and supported by a sufficient prima facie showing of facts to sustain a favorable judgment if the evidence
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	submitted by the plaintiff is credited.” (<i>Id.</i> at 88-89.) “Only a cause of action that satisfies both prongs of the anti-SLAPP statute-i.e., that arises from protected speech or petitioning and lacks even minimal merit-is a SLAPP, subject to being stricken under the statute.” (<i>Id.</i>) The anti-SLAPP statute “is to be construed broadly” to protect the valid exercise of constitutional rights. (<i>Crossroads Investors, L.P. v. Federal National Mortgage Assn.</i> (2017) 13 Cal.App.5th 757, 775.) As an initial matter, Plaintiff argues the commercial-speech exemption under § 425.17, subd. (c) removes this action from the anti-SLAPP statute. Defendant argues Plaintiffs’ evidence fails establish each element of the exemption. <u>Commercial Speech Exemption</u> The commercial speech exemption is a “threshold issue” that must be addressed first; if it applies, the anti-SLAPP motion must be denied. (See <i>Xu v. Huang</i> (2021) 73 Cal.App.5th 802, 807.) Section 425.17, subdivision (c) provides that the anti-SLAPP statute “does not apply to any cause of action brought against a person primarily engaged in the business of selling or leasing goods or services ... arising from any statement or conduct by that person” if certain conditions exist. The burden is on plaintiff to show this exemption applies. (<i>Six4Three, LLC v. Facebook, Inc.</i> (2025) 109 Cal.App.5th 635, 647.) “The commercial speech exception has four elements: (1) the cause of action is against a person primarily engaged in the business of selling or leasing goods or services; (2) the cause of action arises from a statement or conduct by that person consisting of representations of fact about that person's or a business competitor's business operations, goods, or services; (3) the statement or conduct was made either for the purpose of obtaining approval for, promoting, or securing sales or leases of, or commercial transactions in, the person's goods or services or in the course of delivering the person's goods or services; and (4) the intended audience for the statement or conduct meets the definition set forth in section 425.17(c)(2).” (<i>Six4Three, LLC, supra</i>, 109 Cal.App.5th at pp. 647–648.) The exemption must be “narrowly construed.” (<i>Simpson Strong-Tie Co., Inc. v. Gore</i> (2010) 49 Cal.4th 12, 22.) Here, Plaintiff has established the commercial speech exemption applies. Defendant is primarily engaged in the business of selling competing hair-education services. (White Decl., ¶ 10.) The statements Plaintiffs challenge are
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	representations of fact about Plaintiffs’ business practices and about the “integrity, safety, and value of the NBR brand and certification programs” and ISLA’s products—that is, about a “business competitor’s business operations, goods, or services.” (FAC, ¶ 21, pg. 5; White Decl., ¶ 12, Exs. B-E.) Defendant made the statements to divert Plaintiffs’ customers to her competing business, urging stylists to disengage from NBR’s certification programs and to stop purchasing ISLA products, by commenting on its business practices and products. (FAC, ¶ 24, pg. 5; White Decl., ¶¶12-13, Exs. B-E.) Defendant directed the statements to existing and prospective students, stylists, and customers of Plaintiffs who are actual or potential buyers of both parties’ services, or persons likely to influence such buyers. (FAC, ¶ 23, pg. 5; White Decl., ¶¶ 12-13). <u>First Prong – Protected Activity</u> Even if the commercial speech exemption does not apply, Defendant has failed to establish Plaintiffs’ claims arise from protected activity. Defendant argues each cause of action arise from her filing and prosecuting the earlier FEHA Action, which she contends is protected under § 425.16, subd. (e)(1) and (2), and from her social media posts, which she contends are protected under § 425.16, subd. (e)(3) and (4). In the opposition, Plaintiff argues Defendant has not shown the causes of action arise from protected activity since this lawsuit pertains to the actions Defendant engaged in against Plaintiffs in their business capacity and is unrelated to the FEHA Action. Regarding the social media posts, Plaintiff argues Defendant’s statements were not made “in connection with” an “issue of public interest”. Defendants bear the burden of demonstrating their alleged speech was protected. (<i>Navellier, supra</i>, 29 Cal. 4th at p. 88.) Section 425.16, subdivision (e) states: “As used in this section, ‘act in furtherance of a person’s right of petition or free speech under the United States or California Constitution in connection with a public issue’ includes: (1) any written or oral statement or writing made before a legislative, executive, or judicial proceeding, or any other official proceeding authorized by law, (2) any written or oral statement or writing made in connection with an issue under consideration or review by a legislative, executive, or judicial body, or any other official proceeding authorized by law, (3) any written or oral statement or writing made in a place open to the public or a public forum in connection with an issue of public interest, or (4) any other conduct in furtherance of the
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		exercise of the constitutional right of petition or the constitutional right of free speech in connection with a public issue or an issue of public interest.” Defendant has failed to establish any cause of action arises from her filing or prosecuting the prior FEHA Action. “[T]he mere fact that an action was filed after protected activity took place does not mean the action arose from that activity for the purposes of the anti-SLAPP statute. Moreover, that a cause of action arguably may have been ‘triggered’ by protected activity does not entail that it is one arising from such. In the anti-SLAPP context, the critical consideration is whether the cause of action is <i>based on</i> the defendant’s protected free speech or petitioning activity.” (<i>Navellier v. Sletten</i> (2002) 29 Cal.4th 82, 89; emphasis in original].) In other words, the speech or petitioning activity itself must be “the wrong complained of, and not just evidence of liability or a step leading to some different act for which liability is asserted.” (<i>Wilson v. Cable News Network, Inc.</i> (2019) 7 Cal.5th 871, 884). “When the allegations referring to litigation activity are only incidental to a cause of action based essentially on nonprotected activity, collateral allusions to protected activity should not subject the cause of action to the anti-SLAPP statute.” (<i>Wittenberg v. Bornstein</i> (2020) 50 Cal.App.5th 303, 312–313.) The FEHA Action is a separate lawsuit that pertains to actions Defendant engaged in against Plaintiffs. The FAC merely mentions the FEHA Action twice in passing as context. (See FAC, ¶ 44, pg. 10 [“Although Defendant may not have directly used defamatory language in every instance, the manner in which she presented her statements, particularly through emotionally charged posts timed with the filing of litigation, conveyed false impressions about White’s conduct, business integrity, and personal character.”]’ ¶ 67, pg. 13 [“Publicly made false and harmful statements about the Plaintiffs on TikTok, Reddit, and Facebook forums during the period following litigation”].) Defendant’s social media posts were not made “in connection with” an “issue of public interest” under section 425.16(e)(3)-(4). Under the governing framework, the court first asks what public issue the speech implicates, then asks “what functional relationship exists between the speech and the public conversation about” that issue. (<i>FilmOn.com Inc. v. DoubleVerify Inc.</i> (2019) 7 Cal.5th 133, 149-150.) It is “not enough that the statement refer to a subject of widespread public interest; the statement must in some manner itself contribute to the public debate.” (<i>Id.</i> at p. 150.)
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	The focus is “the specific nature of the speech,” not “generalities that might be abstracted from it,” and a defendant may not rely on a “synecdoche theory” that defines a narrow dispute by its slight reference to a broad public issue. (<i>Id.</i> at p. 152.) Here, to the extent Defendant discussed her prior employment experiences on social media (see, e.g., Owen Decl., ¶ 5), those statements concern a private grievance with a former employer about that employer’s individual business practices. Courts reject precisely this kind of abstraction: “If we were to accept [defendants’] argument that we should examine the nature of the speech in terms of generalities instead of specifics, then nearly any claim could be sufficiently abstracted to fall within the anti-SLAPP statute.” (See <i>Mann v. Quality Old Time Service, Inc.</i> (2004) 120 Cal.App.4th 90, 111 [finding that the “defendant’s alleged statements were not about pollution or potential public health and safety issues in general, but about []’s specific business practices.”].) To the extent Defendant posted about Plaintiffs’ business practices they also fail because they relate to the quality and products of hair extensions and do not present a concern of public interest. (White Decl., ¶¶ 12-13, Exs. B-E.) “Unlawful workplace activity below some threshold level of significance is not an issue of public interest, even though it implicates a public policy.” (<i>Rivero v. American Federation of State, County, and Municipal Employees, AFL-CIO</i> (2003) 105 Cal.App.4th 913, 914–915.) Plaintiffs, who are the subject of Defendant’s statements, operate within a narrowly defined niche—men’s personal development, empowerment, and lifestyle. (Defendant Anianne Owens’ Declaration, ¶ 6.) This is not a large institution, a public figure of broad renown, or an enterprise of widespread public concern. A former employee’s complaints about a single private employer, affecting the speaker and a limited group of individuals, do not constitute a public issue. The mere fact that the statements were posted online does not change this conclusion. The motion is denied. <u>Second Prong – Probability of Success</u> To establish probability of prevailing on the merits, a plaintiff must “state and substantiate a legally sufficient claim ...Put another way, the plaintiff must demonstrate that the complaint is both legally sufficient and supported by a sufficient prima facie showing of facts to sustain a favorable judgment if the evidence submitted by the plaintiff is
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		credited.” (<i>Monster Energy Co. v. Schechter</i> (2019) 7 Cal.5th 781, 791.) “[A] plaintiff’s burden at the second anti-SLAPP step is a low one, requiring only a showing that a cause of action has at least minimal merit within the meaning of the anti-SLAPP statute.” (<i>Id.</i>, at p. 793.) The court does not “weigh credibility [nor]compare the weight of the evidence. Rather, [the court] accept[s] as true the evidence favorable to the plaintiff and evaluate[s] the defendant’s evidence only to determine if it has defeated that submitted by the plaintiff as a matter of law.” (<i>Id.</i> at pp. 791-792.)
11	Golpa v. Daimler AG 2019-01096618 Motion for terminating sanctions, issue and or Evidence Sanctions	Defendants’ Motion for Sanctions is DENIED. On 4/14/25, this Court ordered the parties to conduct the Airbag Control Unit (ACU) inspection pursuant to specific terms within 30 days. Defendant seeks terminating, evidentiary, and/or monetary sanctions against Plaintiff for failure to preserve and produce the ACU. <u>Legal Standard:</u> Code of Civil Procedure section 2023.030 provides in part as follows: “To the extent authorized by the chapter governing any particular discovery method or any other provision of this title, the court, after notice to any affected party, person, or attorney, and after opportunity for hearing, may impose the following sanctions against anyone engaging in conduct that is a misuse of the discovery process: (a) The court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney’s fees, incurred by anyone as a result of that conduct. The court may also impose this sanction on one unsuccessfully asserting that another has engaged in the misuse of the discovery process, or on any attorney who advised that assertion, or on both. If a monetary sanction is authorized by any provision of this title, the court shall impose that sanction unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (b) The court may impose an issue sanction ordering that designated facts shall be taken as established in the action in accordance with the claim of the party adversely affected by the misuse of the discovery process. The court may also

		impose an issue sanction by an order prohibiting any party engaging in the misuse of the discovery process from supporting or opposing designated claims or defenses. (c) The court may impose an evidence sanction by an order prohibiting any party engaging in the misuse of the discovery process from introducing designated matters in evidence. (d) The court may impose a terminating sanction..." "Sanctions are intended to secure compliance with court orders, not to punish parties. Courts possess inherent power to issue a terminating sanction for pervasive and consistent misconduct. A terminating sanction in the first instance is permitted only in cases involving a willful violation, preceded by a history of abuse, and where no lesser alternative would produce compliance with the order. The issuance of a terminating sanction should not be made lightly." (<i>Gerard v. Cuevas</i> (2025) 118 Cal.App.5th Supp. 37.) "[T]erminating sanctions are appropriate only if a party's failure to obey a court order actually prejudiced the opposing party." (<i>Moofly Productions, LLC v. Favila</i> (2020) 46 Cal.App.5th 1, 11.) Terminating sanctions should be imposed only after incremental lesser sanctions have been imposed and they cannot be imposed for punitive reasons. (<i>Doppes v. Bentley Motors, Inc.</i> (2009) 174 Cal.App.4th 967, 992; Code Civ. Proc. §§ 2023.010, 2023.030.) "A decision to order terminating sanctions should not be made lightly. But where a violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules, the trial Court is justified in imposing the ultimate sanction." (<i>Id.</i> at p. 992, footnote omitted.) <i>Doppes v. Bentley Motors, Inc., supra</i>, 174 Cal.App.4th at 992, further explains, "The trial court has broad discretion in selecting discovery sanctions, subject to reversal only for abuse. The trial court should consider both the conduct being sanctioned and its effect on the party seeking discovery and, in choosing a sanction, should attempt to tailor the sanction to the harm caused by the withheld discovery. The trial court cannot impose sanctions for misuse of the discovery process as a punishment. The discovery statutes evince an incremental approach to discovery sanctions, starting with monetary sanctions and ending with the ultimate sanction of termination. Discovery sanctions should be appropriate to the dereliction, and should not exceed that which is required to protect the interests of the party entitled to but denied discovery. If a lesser sanction fails to curb misuse, a greater sanction is warranted: continuing misuses of the discovery
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	process warrant incrementally harsher sanctions until the sanction is reached that will curb the abuse. A decision to order terminating sanctions should not be made lightly. But where a violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules, the trial Court is justified in imposing the ultimate sanction.”) “Discovery sanctions serve to remedy the harm caused to the party suffering the discovery misconduct. Because discovery sanctions are not designed to punish, sanctions should be tailored to serve that remedial purpose, should not put the moving party in a better position than he would otherwise have been had he obtained the requested discovery, and should be proportionate to the offending party's misconduct.” (<i>Kwan Software Engineering, Inc. v. Hennings</i> (2020) 58 Cal.App.5th 57, 74.) <u>Application:</u> Plaintiff concedes that his counsel lost the ACU. Defendant argues Plaintiff’s counsel was evasive about whether and how the ACU went missing. Defendant contends the ACU would likely reflect an airbag fault code prior to the collision, which would have given Plaintiff the opportunity to fix the issue. Therefore, Defendant argues the Court should make adverse findings related to Plaintiff’s negligence for failure to seek repairs based on a fault code notification. Plaintiff’s counsel presents extensive evidence demonstrating that the loss of the ACU was inadvertent and that Plaintiff’s counsel had diligently searched for the ACU to no avail. Plaintiff presents an expert declaration stating that Plaintiff can show the design of the vehicle was flawed, which would likely cause the airbag’s failure to deploy even without a fault code. Discovery sanctions are intended to ensure compliance with discovery obligations, proportionately remedy failures to comply with discovery, and not to put a party in a better position than if the discovery had been obtained. Here, Defendant has been prevented from determining whether Plaintiff shares responsibility for the airbag failure due to ignoring a warning light prior to the incident. Plaintiff argues this assertion is speculative, and Plaintiff last had the vehicle serviced by a dealership approximately three months before the accident. Moreover, the ACU was severely damaged and it is unknown whether any readout would have been possible.
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		The terminating, issue, or evidentiary sanctions proposed by Defendant ask the Court to assume the ACU would have provided evidence favorable to Defendant. The loss of evidence was likely due to the lack of diligence of Plaintiff's counsel or its storage vendor. However, based on the evidence before the Court at this stage, it remains speculative whether the ACU would have provided evidence more favorable to Plaintiff or Defendant. Defendant may make such arguments to the jury and/or request related jury instructions regarding loss of evidence. Defendant does not request monetary sanctions in the motion. Based on the foregoing, the sanctions requested in the motion go beyond the purpose of sanctions provided by the Code of Civil Procedure. Therefore, the motion is denied as to discovery sanctions without prejudice to Defendant's ability to seek relief via other means.
12	Uriarte v. Van Express, Inc. 2021-01221840 Motion to Vacate Judgment of Dismissal	Plaintiffs Richard Uriarte and Sylvia Uriarte's unopposed motion to vacate the Judgment of Dismissal dated November 10, 2025, is DENIED. Plaintiffs move for mandatory relief under Code of Civil Procedure section 473, subdivision (b) which provides, "whenever an application for relief is made <u>no more than six months</u> after entry of judgment, is in proper form, and is accompanied by an attorney's sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk ..., or (2) resulting default judgment or dismissal entered against his or her client . . ." [Emphasis added.] Here, the application for relief is untimely. The court ordered the Complaint dismissed on 10/7/25, but Plaintiff did not file the Motion to vacate until 4/21/25, more than six months after the dismissal. (ROA 224, 254) Although the request to vacate the Judgment of Dismissal ("Judgment") was timely filed within 6 months of the entry of the Judgment, it would be futile to set aside the Judgment. (See <i>Bowen v. Cowett</i> (1963) 216 Cal.App.2d 766, 771 ["Since setting aside the formal judgment entered March 13, 1959 would still leave the decisions of February 16, 1959 operative and invulnerable to Section 473 it would be futile to set aside said judgment. For that reason the judgment of dismissal of appellants' suit against respondent was proper."].) Plaintiffs to give notice.
13	Luna v. Hyundai motor America 2023-01339475	The Motion for Statutory Penalties by Plaintiffs Santiago Uriel Flores Luna and Jonathan Flores Lunais is DENIED. Plaintiffs seek penalties of \$50 per day for Defendant's failure to timely complete the vehicle repurchase pursuant to the

	Motion for Mandatory Statutory Penalties under CCP 871.27 (g)(2)	parties' settlement agreement. The motion is based on Code of Civil Procedure section 871.27(g)(2), which provides, "The defendant shall promptly process any agreed-upon motor vehicle restitution or replacement pursuant to this section and complete the restitution or replacement within 30 days from the date of receipt of a signed release from the buyer or lessee's counsel. The defendant's failure to do so shall result in a mandatory penalty of fifty dollars (\$50) per day until the settlement is completed, unless the parties stipulate otherwise. The consumer shall comply in good faith with requests from the manufacturer for reasonable documentation required to complete the requested restitution or replacement of the motor vehicle. In the event the consumer fails to comply in good faith and delays the restitution or replacement, the manufacturer shall not be subject to the daily fifty-dollar (\$50) penalty." On 6/15/26, the Court granted Plaintiffs' motion to enter judgment on the settlement agreement. As discussed in the 6/15/26 order, Defendant failed to timely schedule the surrender and Plaintiffs failed to timely provide current registration pursuant to the agreement. Defendant opposes this motion on the grounds that section 871.27, which was enacted effective January 2025, did not exist when this action was filed in 2023, and cannot apply retroactively. The parties' settlement agreement did not contain a penalty provision. Moreover, Defendant argues Plaintiffs have not complied with their documentation obligations under the agreement. Although there is no case law addressing this specific issue, it appears section 871.27 applies to this case because it provides procedural mechanisms regarding settlement of lemon law cases, not a statute of limitations or other substantive law that cannot fairly be applied to previously-filed cases. Nonetheless, assuming section 871.27 applies, Plaintiffs have not shown statutory penalties are appropriate here. The parties stipulated to specified settlement terms including Plaintiffs providing current registration which Plaintiffs did not timely comply with. Defendant argues this prevented it from completing the vehicle repurchase earlier. The Court did not resolve Plaintiffs' motion for entry of judgment until 6/15/26. Defendant has shown that Plaintiffs did not promptly comply with their duty to provide documentation, so statutory penalties are not mandatory under the statutory language of section 871.27.
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14	Farmanfarmaian v. Pondfield International Limited 2023-01338835 Motion for Summary Judgment and or Adjudication	Cross-Defendant Nezam Farmanfarmaian's Motion for Summary Judgment is DENIED. Code of Civil Procedure section 437c(b)(4) expressly prohibits including new evidence in reply. It does not permit requesting permission to include new evidence in reply. Thus, Nezam's request to file new evidence in reply and request for judicial notice is denied. Even if the Court were to allow such evidence in, it does not change the Court's ruling on this Motion because the evidence does not support Nezam's claims. "The memorandum must contain a statement of facts, a concise statement of the law, evidence and arguments relied on, and a discussion of the statutes, cases, and textbooks cited in support of the position advanced." (Cal. Rules of Court, rule 3.1113(b).) Nezam's Motion advances many arguments without any support from legal authorities. The Court has already had to caution Nezam regarding his responsibilities as a self-represented litigant when submitting his prior motion for summary judgment. The Court now cautions that submitting frivolous motions is a sanctionable act. <i>"A trial court may order a party, the party's attorney, or both, to pay the reasonable expenses, including attorney's fees, incurred by another party as a result of actions or tactics, made in bad faith, that are frivolous or solely intended to cause unnecessary delay."</i> (Code Civ. Proc., § 128.5(a).) <u>Merits</u> The elements of a claim for breach of contract are "(1) the existence of the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) the resulting damages to the plaintiff." (<i>D'Arrigo Bros. of California v. United Farmworkers of America</i> (2014) 224 Cal.App.4th 790, 800.) Nezam has failed to satisfy his burden of showing a complete defense to Ardalan's breach of contract claim or Ardalan cannot establish one or more of the essential elements to his breach of contract claim. A contract is not void or uncertain merely by failing to state a place of performance or the exact method of performance. (See <i>Hale v. Bohannon</i> (1952) 38 Cal.2d 458, 466 ["where no place of performance is expressly stipulated, it ought to be held performable in the place where the circumstances ... indicate that the parties expected or intended it to be
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	performed”].) Nezam was free to choose the exact place or method or repayment because the promissory note (the Note) and Deed of Assignment (the Deed) were silent as to those terms. As Ardalan suggests, Nezam could have simply mailed a check. The Deed provides the loan was “repayable on or before 10 May 2018 or on the date the Borrower receives inheritance from his parents. whichever of the two is the earliest to occur.” (Ex. A.) Thus, Nezam was still obligated to repay the loan within the Note was still past due upon signing the Deed and Nezam was on notice his obligation to repay was past due. Next, his performance was not reliant on the distribution of his inheritance. In his Motion, Nezam argues the first triggering event was his bankruptcy in 2016 and the other triggering event was May 10, 2018. Thus, both other triggering event occurred and receipt of his inheritance is immaterial. None of Nezam’s arguments support a finding that he was excused from performance, the contract was void or uncertain, or Ardalan cannot establish Nezam breached the contracts by failing to repay the loan. Thus, Nezam’s Motion is denied.
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